

INSIDE THE INDUSTRY

JUDGE THARP RULES THIS WEEK.

Response briefs in Zillow v. MRED and Compass landed July 13. Here's what each outcome means for your listings before the verdict drops.

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**ONE RULING IN
CHICAGO DECIDES
WHETHER YOUR
SELLER'S HOME STAYS
VISIBLE EVERYWHERE,
OR GETS LOCKED TO
WHICHEVER PORTALS
YOUR BROKERAGE
PICKS.**

What Judge Tharp decides this week goes national.

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HERE'S HOW WE GOT TO THIS WEEK.

Zillow sued MRED and Compass in May over access to listings. The preliminary injunction hearing ran July 1 and 2. Post-hearing briefs went in July 9. Final responses landed July 13. Judge Tharp has everything he needs to rule.

THE RULING ANSWERS ONE QUESTION.

Does Zillow's feed of Chicago listings stay on while the full antitrust case proceeds? That's it. That's the whole ballgame this week.

ZILLOW WINS.

Every buyer who searches Zillow
sees your listing. Business as usual.

COMPASS AND MRED WIN.

They can restrict which portals see your seller's home while the litigation continues. That's the private-listings model surviving its biggest legal test yet.

THIS ISN'T JUST A CHICAGO STORY.

The private-listings model, Compass Private Exclusives, MLS willingness to restrict portal access, is already active in multiple markets. A Chicago federal ruling is the first real court test of it. What happens here sets the template everywhere else.

BEFORE THE RULING DROPS, DO THIS:

- 1** Tell every seller you're working with exactly which portals their home shows up on.
- 2** Say it out loud: portals and private networks, not just "online."
- 3** Put it in writing, on the listing agreement.
- 4** Watch for the ruling this week, both outcomes change what you tell the next seller.

THE TAKEAWAY

SAVE THIS FOR THE WEEK JUDGE THARP RULES, YOU'LL WANT THE TWO-OUTCOME BREAKDOWN HANDY WHEN A SELLER ASKS WHAT IT MEANS.

Follow for what your brokerage won't teach you.

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